

|   |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|---|-------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|   |                                                                   | <p>Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.</p> <p>Plaintiffs to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 8 | <p><b>2024-01371844</b></p> <p><b><i>Price vs. Ziemba</i></b></p> | <p><b>Motion for Summary Judgment and/or Adjudication</b></p> <p>Defendants Tracey Finney and Bradley Finney’s motion for summary judgment is GRANTED.</p> <p>A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc., § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (<i>Ibid.</i>)</p> <p>The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.)</p> <p><b>Defendants’ request for judicial notice</b></p> <p>In support of their motion, Defendants request judicial notice of the following documents (ROA 122):</p> <p>(1) Exhibit A –First Amended Complaint filed by Plaintiff Reid Price on 8/5/24</p> <p>A court may take judicial notice of its own records. (Cal. Evid. Code, § 452, subd. (e).) While “[a] court may take judicial notice of the <i>existence</i> of each document in a court file, [it] can only take judicial notice of the <i>truth</i> of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (<i>People v. Thacker</i> (1985) 175 Cal.App.3d 594, 599, italics in original, citation omitted.))</p> <p>Accordingly, the Court GRANTS Defendants’ request for judicial notice.</p> <p><b>Plaintiff’s cause of action for negligent supervision</b></p> <p>“To establish liability in negligence, it is a fundamental principle of tort law that there must be a <i>legal duty</i> owed to the person injured and a breach of that duty which is the proximate cause of the resulting injury. . . [A] person is ordinarily not liable for the actions of another and is under no duty to protect another from harm, in the absence of a <i>special relationship</i> of custody or control.” (<i>Romero v. Superior Court</i> (2001) 89 Cal.App.4th 1068, 1078-1079, citations omitted.)</p> |

“A special relationship between the defendant and the victim is one that ‘gives the victim a right to expect’ protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that ‘entails an ability to control [the third party’s] conduct.’” (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 216, citation omitted.) “The existence of such a special relationship puts the defendant in a unique position to protect the plaintiff from injury. The law requires the defendant to use this position accordingly.” (*Ibid.*, citation omitted.) This rule “extends a right of recovery to individuals in relationships involving dependence or control, and who by virtue of those relationships have reason to expect the defendant’s protection.” (*Id.* at p. 220.) “Whether a duty exists is a question of law to be resolved by the court.” (*Id.* at p. 213, citation omitted.)

“To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor’s propensity to do the bad act.” (*Z.V. v. County of Riverside* (2015) 238 Cal.App.4th 889, 903.)

Defendants contend they did not owe a duty of care to Plaintiff because there was no special relationship between the parties, the incident did not occur on the Finneys’ property, and there is no evidence Defendants were aware of or had notice of any alleged dangerous propensity of Kayla Ziemba (Kayla).

The undisputed facts establish that Defendants hosted their daughter’s friends/co-workers, including Plaintiff, an adult, at their residence located at 10 Bel Flora in Rancho Santa Margarita, California (the Residence). (Undisputed Material Fact [UMF] Nos. 1, 2). The Residence is located at the end of Bel Flora Street that extends off a cul-de-sac located at the opposite end of the street from the Residence. (UMF No. 5). At the time of the incident, there was a basketball hoop located along a curb of the cul-de-sac on Bel Flora. (UMF No. 6). It was left by a former neighbor before the incident, did not belong to Defendants, and was not located on their property. (UMF Nos. 7, 8.)

It was common for the neighborhood kids to play at the basketball hoop, and at the time of the incident, the weather was sunny and there were no visible issues with the condition of the street where the hoop was located. (UMF Nos. 10-11.) As such, Defendants had no reason to worry about the group’s safety at the basketball hoop. (UMF No. 12.)

After spending some time at the Residence, Plaintiff left and stopped at the basketball hoop with his girlfriend on their way to the car to say their goodbyes to the group there. (UMF Nos. 16, 17.) A basketball rolled up to Plaintiff’s feet as he was standing near the curb. (UMF No. 18). Plaintiff then picked up the ball, dribbled it 1 to 3 times and took 1 to 3 steps forward to throw the ball to the player at the “top of the key”. (UMF Nos. 19, 20.) Kayla approached Plaintiff as he was dribbling the ball, and, in an effort to move around her, Plaintiff began a pivoting

|    |                                                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
|----|----------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                      | <p>maneuver during which he contends Kayla tripped his foot from under him resulting in his fall. (UMF Nos. 21, 22).</p> <p>Defendants knew Kayla to be a sweet, well-mannered, and sporty girl, and she had been to the Residence on numerous occasions before the incident. (UMF Nos. 24, 25). At no time during any of Kayla's prior visits to the Residence did she injure or trip anyone, nor were Defendants aware of any prior incident where she tripped or injured another person. (UMF Nos. 26, 27). At the time of the incident, Defendants were unaware of any potentially dangerous propensity of Kayla, nor did they believe that she posed any danger to the other invited guests at the Residence. (UMF No. 28).</p> <p>As such, it is undisputed that the incident occurred at a location that was not located on Defendants' property and Defendants did not own. (UMF Nos. 6-9.) It is also undisputed that Defendants did not have any reason to be worried about the safety of the group playing basketball at the hoop. (UMF Nos. 10-12.) It is further undisputed that Defendants were unaware of any dangerous propensity of Kayla, and did not believe that she posed any danger to the other invited guests at the Residence. (UMF Nos. 24-28.)</p> <p>Plaintiff has not opposed the motion and otherwise presents no evidence demonstrating that Defendants owed any duty to Plaintiff based on a special relationship between Plaintiff and Defendants or Plaintiff and Kayla. Plaintiff has similarly presented no evidence that Defendants had any prior knowledge of any propensity by Kayla to trip or injure another person or that they otherwise had a duty to control Kayla's conduct.</p> <p>Accordingly, the Court GRANTS Defendants Tracey Finney and Bradley Finney's motion for summary judgment.</p> |
| 9  | <p><b>2022-01256458</b></p> <p><b><i>Reshotkin vs. Sasco</i></b></p> | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>The motion of attorney Sandeep J. Shah to be relieved as counsel for plaintiff Kirill Reshotkin is GRANTED. (Code Civ. Proc., § 284; Cal. Rules of Court, rule 3.1362.) Attorney will be relieved as counsel of record for client effective upon filing of a proof of service of the Court's signed order on client. Moving attorney is to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 10 | <p><b>2024-01442750</b></p> <p><b><i>Reyes vs. Cordova</i></b></p>   | <p><b>Motion to Be Relieved as Counsel of Record</b></p> <p>Motion to Be Relieved as Counsel of Record</p> <p>Attorney Sergio Alejandro Copete's motion to be relieved as counsel for Plaintiff Jorge Reyes is DENIED without prejudice.</p> <p>Rule of Court 3.1362 governs motions to be relieved as counsel. The court has reviewed the materials submitted by the moving party, Attorney Sergio Alejandro Copete, and finds that counsel did not properly confirm Plaintiff's address to be current as required by rule 3.1326, subdivision (d). Attorney Copete has not shown he made reasonable efforts to locate a more current address for Plaintiff.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |